# CHAPTER 74 Official Language

**P**art XVII of the Constitution deals with the official language in Articles 343 to 351. Its provisions are divided into four heads—Language of the Union, Regional languages, Language of the judiciary and texts of laws and Special directives.

**LANGUAGE OF THE UNION**

The Constitution contains the following provisions in respect of the official language of the Union.

1. Hindi written in *Devanagari* script is to be the official language of the Union. But, the form of numerals to be used for the official purposes of the Union has to be the international form of Indian numerals and not the *Devanagari* form of numerals.

2. However, for a period of fifteen years from the commencement of the Constitution (i.e., from 1950 to 1965), the English language would continue to be used for all the official purposes of the Union for which it was being used before 1950.

3. Even after fifteen years, the Parliament may provide for the continued use of English language for the specified purposes.

4. At the end of five years, and again at the end of ten years, from the commencement of the Constitution, the President should appoint a commission to make recommendations with regard to the progressive use of the Hindi language, restrictions on the use of the English language and other related issues[1].

5. A committee of Parliament is to be constituted to examine the recommendations of the commission and to report its views on them to the President[2].

Accordingly, in 1955, the president appointed an Official Language Commission under the chairmanship of B.G. Kher. The commission submitted its report to the President in 1956. The report was examined by a committee of Parliament constituted in 1957 under the chairmanship of Gobind Ballabh Pant. However, another Official Language Commission (as envisaged by the Constitution) was not appointed in 1960.

Subsequently, the Parliament enacted the Official Languages Act in 1963. The act provides for the continued use of English (even after 1965), in addition to Hindi, for all official purposes of the Union and also for the transaction of business in Parliament. Notably, this act enables the use of English indefinitely (without any time-limit). Further, this act was amended in 1967 to make the use of English, in addition to Hindi, compulsory in certain cases[3].

**REGIONAL LANGUAGES**

The Constitution does not specify the official language of different states. In this regard, it makes the following provisions:

1. The legislature of a state may adopt any one or more of the languages in use in the state or Hindi as the official language of that state. Until that is done, English is to continue as official language of that state.